

Thomas Cotton v. Orlando Garcia, et al., 25CV-0306

Hearing: Motion to Strike

Date: September 24, 2026

TENTATIVE RULING

On May 14, 2025, Thomas Cotton filed this personal injury action against Orlando Garcia. Cotton filed a first amended complaint (FAC) on June 25, 2026, naming Calvin Garcia as an additional defendant. Orlando Garcia responded to the FAC by filing the present motion to strike the prayer for punitive damages. No opposition has been filed. However, proof of service is deficient.

Notice of the motion is deficient. The proof of service is attached to the motion, meaning when served, the notice of motion did not include the hearing information which is assigned by the Clerk's Office at the time of filing. (Cal. Rules of Court, rule 3.1110(b); Local Rule 7.05.1.) The motion will be continued for proper notice.

ORDER (PROPOSED)

The matter is continued to November 12, 2026, at 9:00 a.m. in Department 2. The Court also continues the Case Management Conference on November 9, 2026, to November 12, 2026, at 9:00 a.m. in Department 2. Orlando Garcia is to give notice of both continuances.